

22PR00317 Estate of Ursula Elisabeth Benham

County: santa-barbara

Division: Decedent's Estate

Department: 4 SM-Cook

Hearing date: 2026-05-18

Motion: Final Distribution

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Tentative Ruling: Estate of Ursula Elisabeth Benham

Case Number

22PR00317

Case Type

Decedent's Estate

Hearing Date / Time

Mon, 05/18/2026 - 08:30

Nature of Proceedings

Final Distribution

Tentative Ruling

Probate Notes:

Appearances are required.

The following is noted for the Court at the hearing:

On April 3, 2026, Roberta Chavez filed a First Amended Petition for Final Distribution. On April 17, 2026, Alexandra Barbara Autuori filed objection to that amended petition, placing the matter at issue and requiring evidentiary hearing to resolve. (In re Estate of Lensch (2009) 177 Cal.App.4th 667, 676; Conservatorship of Farrant (2021) 67 Cal.App.5th 370, 377.)

The following procedural defects with the petition are also noted:

Proof of Service of Notice of Hearing (Form DE-120). Despite previous probate notes to the contrary, petitioner consistently refuses to use the mandatory Judicial Counsel forms to send notice to parties in this case. This is sanctionable conduct. (CRC, Rule 2.30.)

Notice for this hearing still has not been sent on form DE-120, thus has not satisfied the requirement of Due Process.

Notice must be given 15 days prior to hearing, served on all known heirs and devisees on the mandated Judicial Council form DE-120, as well as on the Personal Representative (if not the petitioner) and special notice requestors. (Prob. Code, §§ 11601 & 1220.) Notice must be sent to the person, not the person's representative. (§1220.)

Reimbursement requests should be rejected. The petitioner requests reimbursement of \$39,339.05 at paragraph 12 of the petition, but those reimbursements appear to be the same claims that were adjudicated in the creditor's claim of Erik Benham that was finalized after evidentiary hearing. A supplement was filed on April 3, 2026, attempting to explain why the claims are similar, and justify the payment of those claims. The Supplement fails to adequately do so. Many of the charges on the itemized list attached to the petition are indistinguishable from claims by Erik Benham that have already been adjudicated.

Accounting discrepancies. The accounting still fails to comply with Probate Code section 1060, et seq. requirements for an accounting, and does not balance in the slightest. Credits do not equal Charges, nor are the supporting schedules meaningful or organized in a way to support the summary of account.

"Furthermore, failure to provide proper accounting for entrusted funds is cause for discipline whether or not financial loss has ultimately occurred." (See *McCray v. State Bar* (1985) 38 Cal.3d 257, 270; *Fitzsimmons v. State Bar* (1983) 34 Cal.3d 327, 331–332.)" (*Ridge v. State Bar* (1989) 47 Cal.3d 952, 961.)

Judges

Judge Jed Beebe

Dept. 4 SM-Cook

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